

RESOLUTION OF ARCHIVE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 22/03/2023, two complaints were filed with the Spanish Agency for Data Protection against ANTA Y FERRERO, S.L. with NIF B87730149 (hereinafter, ANTA Y FERRERO), for a possible breach of the provisions of personal data protection regulations.

The complainants state that the website luganosrestaurante.com, in the "Superpedidos" section, publishes all the data of individuals who have placed an online order (name, surname, phone number, and delivery address), along with the content of the orders, including date and time.

Along with the complaints, they provided screenshots of what would be the webpage luganorestaurante.com/superpedidos/ and of the search conducted on Google by entering "Restaurante Lugano."

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter LOPDGDD), on 17/04/2023 and 09/05/2023, these complaints were forwarded to ANTA Y FERRERO for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

Both notifications were carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification.

However, the first of them was received on 24/04/2023 as evidenced by the acknowledgment of receipt in the file; but the second was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on 20/05/2023, as evidenced by the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail. Nevertheless, it was notified by appearance before the Single Enabled Electronic Address service (hereinafter, DEHÚ) on 22/05/2023. In this notification, the obligation to interact electronically with the Administration was reminded, and information was provided on the means of access to such notifications, reiterating that, henceforth, notifications would be made exclusively by electronic means.

On 17/05/2023, a letter from ANTA Y FERRERO was received in this Agency requesting a copy of certain documents related to the first of the complaints, with the requested copy being sent on 19/05/2023.

THIRD: On 22/06/2023, in accordance with Article 65 of the LOPDGDD, the complaints submitted were admitted for processing.

FOURTH: On 28/02/2024, by diligence carried out by this Agency, the verifications carried out on 20/02/2024 regarding the following aspects were incorporated into the file:

- Result of the Google search for "Restaurante Lugano."
- Screenshot of the webpage <https://luganorestaurante.com/superpedidos/>

LEGAL GROUNDS

I

Competence and procedure

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency

for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Integrity and confidentiality

Article 5.1.f) "Principles relating to processing" of the GDPR establishes:

"1. Personal data shall be:

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f) treaties in such a way as to ensure adequate security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, through the application of appropriate technical or organizational measures ("integrity and confidentiality").

III

Conclusion

On 22/03/2023, this Agency received two complaints directed against ANTA Y FERRERO for the publication on their website restaurantelugano.com of personal data of their customers as a result of online orders.

The complaining parties provided alongside their respective complaints screenshots corresponding to the "Superpedidos" section of the website in question. The screenshots show the web address luganorestaurante.com/superpedidos/ and a box displaying the personal data of various individuals such as name, surname, phone number, and address. Additionally, the first complaining party attached a screenshot of what would appear in the Google web browser when searching for "Restaurante Lugano," which includes a direct link to the "Superpedidos" section.

However, following the checks carried out by this Agency on 20/02/2024, it has been proven that when accessing the address <https://luganorestaurante.com/superpedidos/>, the following message appears (unofficial translation, the original in English): "Sorry, but the requested item is not found on this site. Please try again or contact the support administrator." In no case is there a list with personal data of customers.

Furthermore, when searching in the Google web browser for "Restaurante Lugano," there is no direct access to the "Superpedidos" section.

Consequently, it has not been possible to verify that, in fact, the "Superpedidos" section of the website restaurantelugano.com had published a box with personal data of the individuals who placed online orders. Thus, following the relevant proceedings by this Agency, it has not been possible to ascertain the infringement. Therefore, the case should be archived, without prejudice to the Agency applying its investigative and corrective powers, which may carry out subsequent actions related to the data processing referred to in the complaints.

Therefore, in light of the above, the Director of the Spanish Agency for Data Protection RESOLVES: FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to ANTA Y FERRERO, S.L. and to the complaining parties.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of the LPACAP, and in accordance with the provisions of Articles 112 and 123 of the aforementioned

LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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